

25NWCV02283 25NWCV02283

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-07-21

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Case Number: 25NWCV02283 Hearing Date: July 21, 2026 Dept: R

#15

RODRIGUEZ v. LA PERLA DEL MAR BAR & GRILL

CASE NO.: 25NWCV02283

HEARING: Tuesday, July
21, 2026, at 9:30 AM

Defendant CROWN PLAZA DEVELOPMENT, LLC dba LA PERLA DEL MAR's
Unopposed Motion to Set Aside Default is GRANTED.

Defendant's Proposed Answer attached as Exhibit 5 to Juan
Garcia Moreno's Declaration is NOT DEEMED SERVED AND FILED as of
the hearing date. Moving Party is ORDERED to FILE and SERVE the
Answer within 5 days from the date of the Court's issuance of this Order.

Moving Party to give notice.

Background

On June 24, 2025, Plaintiff YOLANDA SANCHEZ RODRIGUEZ filed
this action against Defendants CROWN PLAZA DEVELOPMENT, LLC dba LA PERLA DEL
MAR, erroneously sued as LA PERLA DEL MAR BAR & GRILL ("Defendant") and
DOES 1 to 20, inclusive.

Defendant's default was entered on August 11, 2025. As of July
21, 2026, default judgment has not been entered.

Motion to Set Aside

Defendant timely filed the subject motion on January 29, 2026. Defendant now moves to set aside the default under CCP §473(b).

CCP § 473(b), states that "[t]he court may...relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect."

Defendant contends that its agent for service process, Nohemy Magana, contacted her brother, an insurance broker, regarding the instant lawsuit. Defendant contends Ms. Magana's brother had communicated with and resolved insurance issues for Defendant in the past. Defendant believed Mr. Magana's brother would forward the claim to Defendant's insurance carrier and secure representation for Defendant.

The policy of hearing cases on their merits is well-established. (See, e.g., *Berman v. Klassman* (1971) 17 Cal.App.3d 900.) Given the liberality associated with Motions to Set Aside under CCP §473(b), the Court finds Plaintiff's Declaration sufficient to warrant to relief. The law favors trials on the merits. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980.)

The Motion is GRANTED. The August 11, 2025, default is SET ASIDE and VACATED.